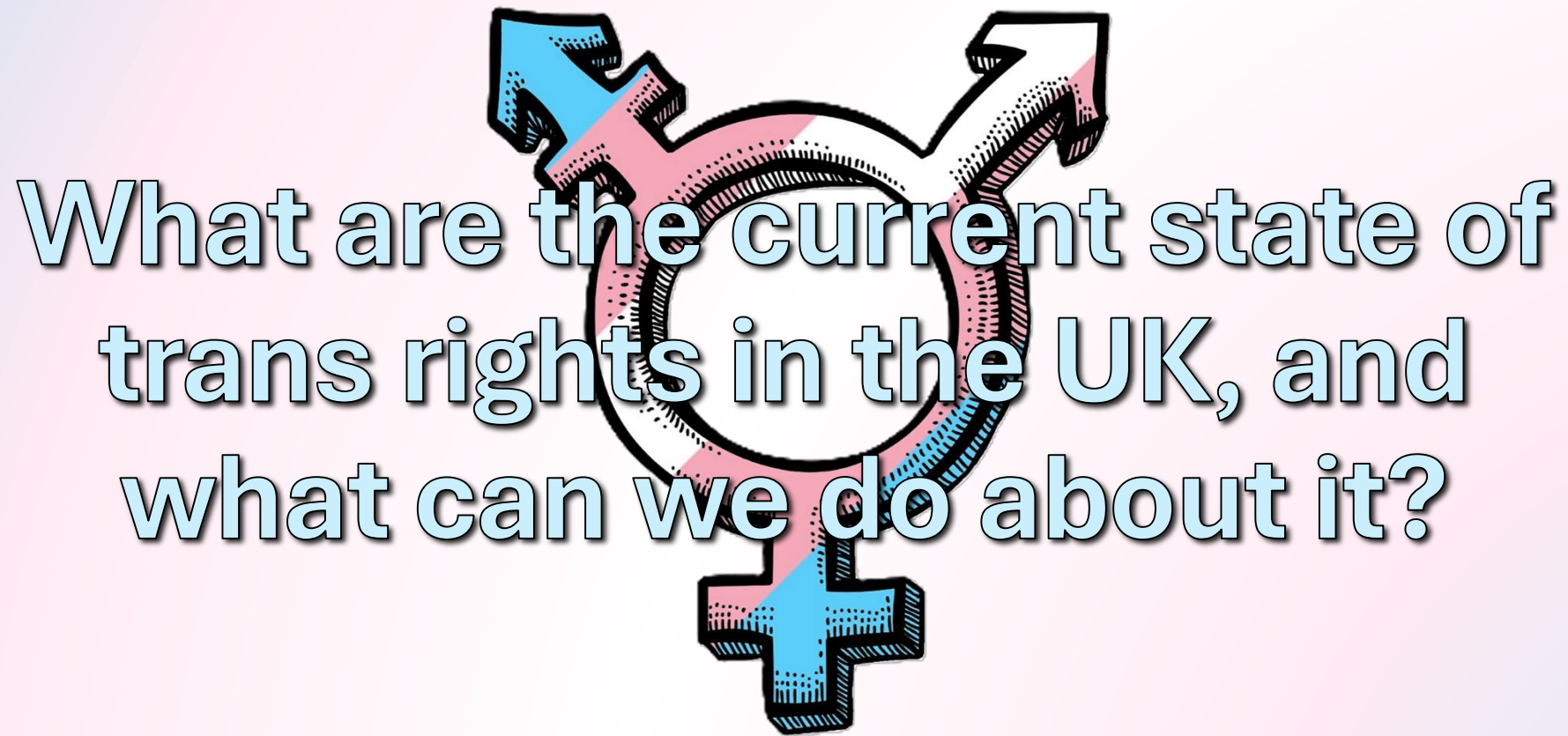




A Timeline: main focus points

- The **Gender Recognition Act** (2004) and efforts to improve this
- **Cass review** (2022) and **NHS England's recent review** (March 2026)
- Trans Actual – **Trans Lives report** (data collected 2024-2025 before ruling)
- **Supreme court ruling** 2025, **EHRC interim guidance** 2025 and recent released (May 22nd 2026) statutory guidance
- **Social Environment**
- **How did we get here?** – Amnesty International Report
- **What can we do now?**



Gender Recognition Act

- **Gender Recognition Act 2004** (GRA) drafted in response to court rulings from European Court of Human Rights
 - **change legal gender with Gender Recognition Certificate** (GRC), procedure ranked among worst in Europe - “behind international human rights standards”
- **March 2022** - bill introduced in Scottish Parliament which would reform GRA
 - Applicants would swear under oath they intend to remain in acquired gender
 - Passed in Scottish Parliament → Rishi Sunak vetoes law, over concerns for "women's and children's safety”
- **Also March 2022:** Government briefly dropped ban on **conversion therapy**
 - Following public response: ban is passed exclusively for sexual orientation, Equality & Human Rights Commission asks to **explicitly exclude protections for transgender people**

The path to the Cass review and recent NHS England review: trans youth in the firing line

- **December 2020:** Bell v Tavistock: High Court ruled children under 16 in England and Wales could not consent to puberty blockers – eventually **Overtaken**
 - **2021-2022:** trans youth suicides skyrocket
- **April 2022: Cass review** published and **inquiry into gender treatment for children** – following concerns raised in review
 - Cass review: 'independent' review of gender related care for trans young people in UK
- **November 2022:** World Professional Association of Transgender Health described alternate treatment suggested as "tantamount to '**conversion**' or '**reparative**' **therapy**"

The path to the Cass review and recent NHS England review

- **March 2024:** NHS England **no longer prescribes puberty blockers to minors** outside use in clinical research trials
- **June 2024: emergency “three-month” ban** on private prescriptions of puberty blockers
 - Renewed again August 2024, again November, renewed indefinitely December 2024 outside of clinical trials
- **November 2025:** puberty blockers trial studies announced - “**designed to reach a negative conclusion**”
- **Feb 2026:** puberty blockers **trial paused** over “ethical concerns” raised by senior figure **previously removed from involvement** in trial due to serious concerns over his impartiality.

Flaws in the recent review: breaking down an example of anti-trans pseudoscience

- **March 2026:** no new prescriptions of cross-sex hormones to 16 and 17-year-olds, following review claiming previous research on harms or benefits was "really weak"
- Across 10 reviews commissioned by NHS England, 547 full-text screenings: 17 studies included - **a 97% exclusion rate.**
 - Review fails to follow typical standards of peer-reviewed research
 - Studies that didn't perfectly match a given review's criteria excluded - even if directly relevant data contained
 - criteria designed to **guarantee each piece too small to support a conclusion** - and then citing this as reason to ban care
 - **discarded** some of **most significant transgender care studies published in last decade** without good reason
 - ignored previous and ongoing research already commissioned by NHS England

Review	Intervention	Full Texts Assessed	Studies Included	Studies Excluded
2417h	Oestrogen monotherapy, binary	69	4	65
2417i	Oestrogen monotherapy, non-binary	78	0	78
2417j	Testosterone monotherapy, binary	102	11	91
2417k	Testosterone monotherapy, non-binary	122	0	122
2417l	Oestrogen + GnRH analogues, binary	26	1	25
2417m	Oestrogen + GnRH analogues, non-binary	23	0	23
2417n	Testosterone + GnRH analogues, binary	34	1	33
2417o	Testosterone + GnRH analogues, non-binary	25	0	25
2417p	GnRH analogue monotherapy, non-binary feminising	34	0	34
2417q	GnRH analogue monotherapy, non-binary masculinising	34	0	34
TOTAL		547	17	530
<i>Exclusion rate</i>				96.9%

- Predetermined conclusion: “**insufficient evidence**” that hormone therapy for trans youth works

The Trans Actual Report: TRANS LIVES 2025: Continuing to endure the UK's hostile environment

- Largest in-depth survey of the UK trans population to date.
 - underreporting and erasure of trans and intersex people in censuses
- Trans people face:
 - rampant **health inequality**, in transition and non-transition related healthcare
 - **barriers to obtaining gender-congruent ID**: 13% had changed their ID without issue
 - **employment** and housing **discrimination**
 - experience **homelessness** at rates nearly 4 times higher than wider population
- Trans people of colour, disabled trans people and intersex trans people were especially at risk



The Supreme Court Ruling and EHRC Interim Guidance

- **16th April 2025:** SC ruling For Women Scotland Ltd v The Scottish Ministers
 - ‘sex’, ‘man’, and ‘woman’ in Equality Act refer only to an individual’s sex as noted at birth – **regardless of GRCs**
- **25 April 2025:** EHRC guidance: trans women "biological men" and trans men "biological women", must be **excluded from sex-segregated spaces accordingly**
 - Applied to any school, workplace, sporting body, publicly accessible service (such as restaurants, shops, hospitals, or shelters), and any association of 25 people or more
- **Complete segregation:** trans women and trans men can **also be barred from the men's and women's**, if at least one other facility available
- Presence of segregated spaces **compulsory** in workplace
- Women-only and lesbian-only groups must **bar trans women** from entry

Reflections on the SC Ruling and EHRC Guidance

- **No trans people** were **consulted** in the process of this ruling
- Guidance **condemned** by national and international authorities including:
 - Council of Europe Commissioner for Human Rights
 - Amnesty International UK
 - Human Rights Watch UK
 - Organisation Intersex International Europe
 - British Medical Association: 50,000 medics advised guidance both ‘scientifically illiterate’ and ‘biologically nonsensical.’
- **June 2025: Red Flag Alert** from the **Lemkin Institute for Genocide Prevention**
 - The UK’s current policies towards trans and intersex people meet the ninth pattern of genocide: denial and/or prevention of identity

Where are we now: Updated EHRC Guidance on 22nd May 2026

- **Removes** some of most harmful elements:
 - No more proposals to inspect birth certificates
 - Associations can be **formed for both cis and trans women**
- Trans people to use gendered spaces aligned with **sex assigned at birth**, if only single sex spaces - again **regardless of GRC**
- Claims offering only mixed sex spaces could discriminate against cis women
- Offering only single-sex services is likely to indirectly discriminate against trans people, and **third spaces** must be provided
 - **Treats trans people like a third sex**, suggesting that they should use separate spaces
 - Puts enormous **legal and financial pressure** on venues to create these spaces

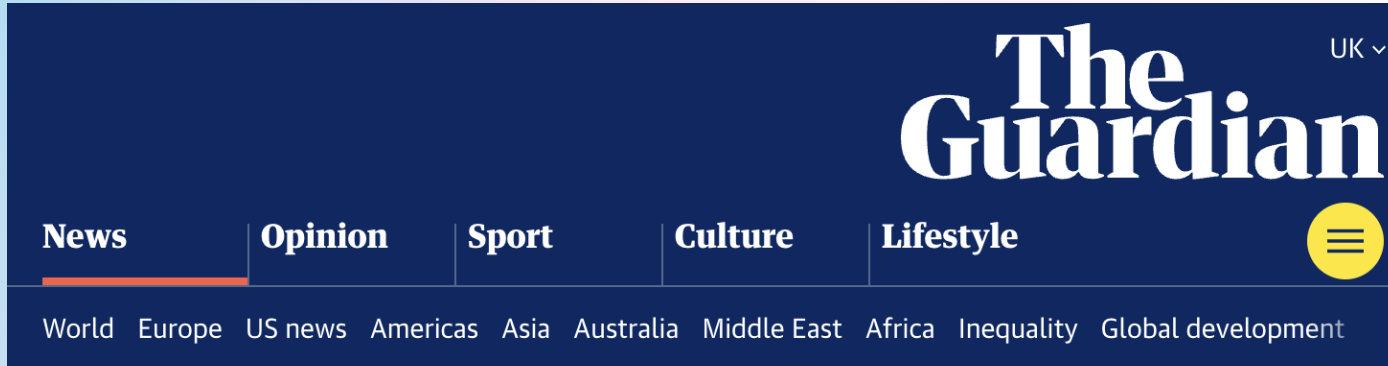
Important Caveats:

- The guidance applies to services/associations – **not employers**
- The guidance **does not change the law**
- It is **not illegal to use any toilets**
- **Legal pressure is on service providers** not individuals – it is down to whether someone is reported and how services respond

Results:

- Increased **risk of violence, forcible outing** and **excluded** from services and **equal access to public life**
- Implementing this enforces **appearance-based gender-policing**, affecting trans people and masculine cis women
- Provides a “legitimate” basis for prejudice
- “Don’t ask, don’t tell” policy for bathroom use and other public spaces
- UK: effectively have **no process for legal gender recognition**
 - failing to meet basic international human rights obligations that led to the Gender Recognition Act more than 20 years ago
- MPs and peers have 40 days to raise concerns. If there are no objections, the guidance becomes statutory.

Social Environment:



LGBTQ+ rights

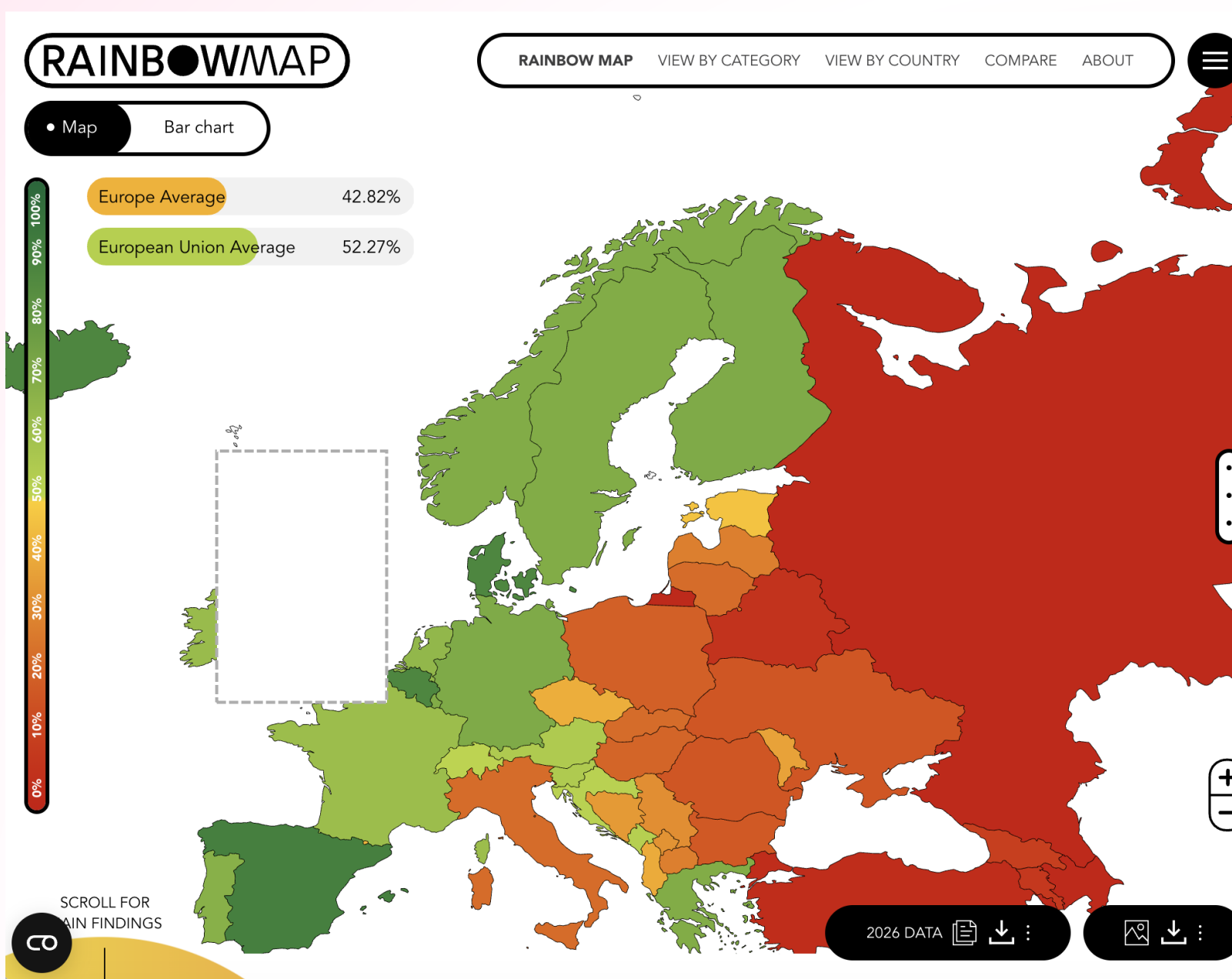
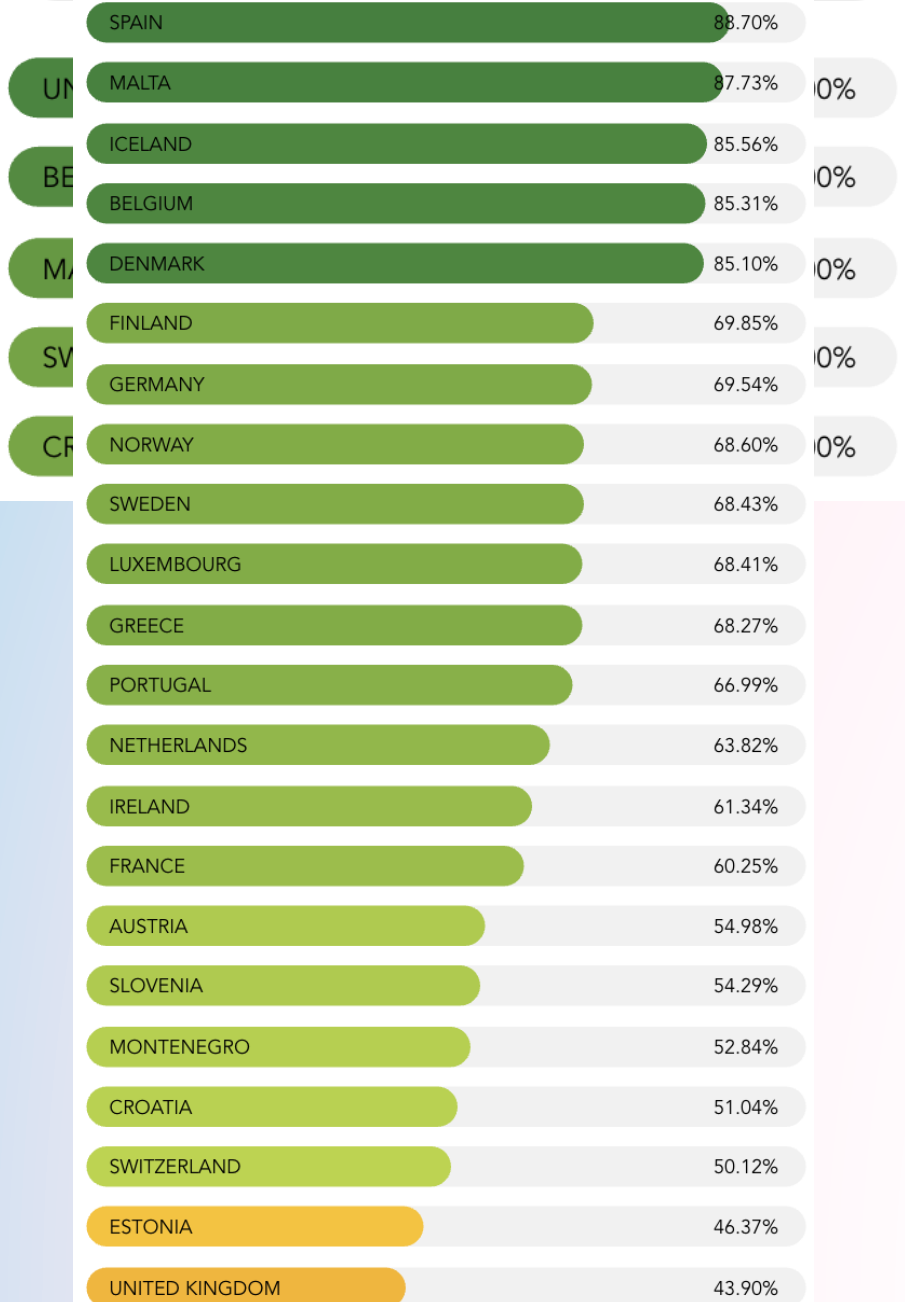
🕒 This article is more than 10 years old

UK warns LGBT tourists of North Carolina and Mississippi travel

- This law states that transgender people must use public bathrooms according to the gender on their birth certificates.

- 10 years ago this law was considered **threatening enough** for the government to issue an **official travel warning**
 - Now it's UK policy





ILGA: European countries rankings on LGBT rights

Social Environment:

- **YouGov polling in late 2025:**
 - 24% of trans adults subjected to **physical violence** in public spaces
 - 65% receiving **verbal abuse** in public spaces
 - 84% feeling **unsafe** in UK
- **TransActual Report:**
 - 99%: transphobia in media affected **mental health**
 - 99%: seen **politicians** express **transphobic** sentiments, 87% in prior year
 - 98% who experienced transphobia from family in 2024 believe that **media impacted family members treatment**
- **December 2020:** Ofcom (UK Media regulator) condemns BBC for balancing appearances by transgender people with activists from gender-critical groups,
- A reinforcing **partnership** between **TERFs and right-wing and far-right actors** has formed since the 2010s,
 - mobilised a **core of activists** to roll back transgender rights and protections in the UK

How on Earth did we get here:

Like a snowball: the
growth and impact of the
gender critical movement
in the UK

May 2026

**AMNESTY
INTERNATIONAL**



- **January 2020-April 2025:** media coverage of trans people has been **excessively high**
 - Across the **Guardian, the Sun, the Telegraph and the Times:** 17,000 articles were published, an average of 264 articles per month, or **9 per day**
 - **Most** media reports about trans people **negative**, trans people hardly in stories. When they do appear, it is as **criminals or murder victims**
 - UK Prime Minister, leader of the opposition, and Scottish First Minister appear consistently, **suggesting issues** of ‘sex’ / ‘gender’ elevated to **top political priorities**
- **The Daily Mail** coverage of transgender related topics **increased 1,817%** January 2013 - January 2023
 - **none** negative in January 2013, **87% articles negative** in January 2023

An organised GC movement has emerged in the UK:

- Once the GRA reform scrapped and GC belief recognised as protected by the EA, the movement had **two main objectives**:
 - **remove legal gender recognition**
 - **restricting access to gender affirming healthcare**
- **51** anti-trans orgs in 2026, **3** established before 2017.
 - three charities, **Sex Matters, FiLiA and LGB Alliance**, others are informal groups or registered orgs
 - Accounts for FiLiA, Sex Matters and LGB Alliance shows **combined expenditure of £3.6 million** in 2019 to 2024
- **May 2025**, JK Rowling set up JK Rowling Women's Fund, a private legal fighting fund for gender critical cases bankrolled from her personal wealth, (estimated around 820 million), set up as private fund rather than a charity - no obligation to report finances

Posted directly after the supreme court ruling



📷 JK Rowling: 'I love it when a plan comes together.'

What can we do: Resources and wider campaigns

- **Quick and Easy Actions:** (petitions, donations, info, email template for MP, much more all sorted by time it takes!)
- <https://transactual.org.uk/change-actions/>
 - Pdf format: <https://transactual.org.uk/wp-content/uploads/Bringingaboutchangeleaflet2021.pdf>
- Information and donations also through:
- <https://goodlawproject.org/campaigns>
- Email your MP and ask them to sign EDM 240, template here:
 - <https://equalrecognition.eaction.org.uk/rejectthecode>

If you have 10 minutes

GOOD LAW
Project

About Campaigns Latest Take action Resources Shop Q

Donate

CAMPAIGN

Stop the UK's attack on trans people

The Supreme Court ripped up the Equality Act without hearing a single trans voice – and the aftermath has been devastating. We're fighting back to defend the human rights of all

£ Chip in to our crowdfunder



Nella Gocal-McConkey / Shutterstock

Meet HR

Volunteer

What can we do: University and personal level

- If you are a cis woman, please sign this **letter against transphobia enacted in the name of feminism**:
 - <https://notinourname.org.uk/>
- Especially if you are trans and/or a PhD student (FREE TO JOIN) : **Join your Union (UCU)**
 - https://my.ucu.org.uk/app/membership/member_quote
- Join **LGBT Staff and Ally Network groups** where possible
 - To join Bee Proud, email: <mailto:matt.sanderson@manchester.ac.uk> to be added to the Teams group
- If you can: **Join protests, marches, local organizing**
- Ultimately, on a human level – please **support the trans people in your life** and **stand up for us** where you can



Resources: Reports and Documents:

- THE EROSION OF TRANS RIGHTS IN THE UK A HUMAN RIGHTS ANALYSIS FOLLOWING THE UK SUPREME COURT RULING IN FOR WOMEN SCOTLAND LTD V THE SCOTTISH MINISTERS:
 - <https://www.equality-network.org/wp-content/uploads/2025/07/The-Erosion-of-Trans-Rights-in-the-UK-a-human-rights-analysis.pdf>
- TRANS LIVES 2025: Continuing to endure the UK's hostile environment: (Done pre-SC ruling)
 - <https://transactual.org.uk/wp-content/uploads/TransActual-Trans-Lives-2025.pdf>
 - Key Facts Summary: <https://transactual.org.uk/wp-content/uploads/Trans-Lives-Report-2025-Policy-Summary.pdf>
- Gendered Spaces and the Impact of the Supreme Court Judgement/EHRC Interim Update on Trans, Intersex and Gender Non-Conforming Adults:
 - <https://transactual.org.uk/wp-content/uploads/Gendered-Spaces-Review-Final.pdf>
- Amnesty International: Like a snowball: the growth and impact of the gender critical movement in the UK
 - https://media.amnesty.org.uk/documents/Like_a_snowball_final_.pdf
- Timeline leading up to initial EHRC Guidance:
 - <https://transactual.org.uk/wp-content/uploads/EHRC-Timeline.pdf>

Information used to make this primarily came from:

- <https://goodlawproject.org/>
- <https://notaphase.org/>
- <https://transactual.org.uk/>
- <https://www.amnesty.org.uk/>

As well as:

- <https://www.equality-network.org/>
- <https://rainbowmap.ilga-europe.org/>
- <https://www.ucu.org.uk/>
- <https://www.erininthemorning.com/p/new-nhs-england-review-excluded-97>
- <https://www.gov.uk/apply-gender-recognition-certificate/what-documents-you-need>
- https://law.yale.edu/sites/default/files/documents/integrity-project_cass-response.pdf
- <https://www.lemkininstitute.com/>
- https://law.yale.edu/sites/default/files/documents/integrity-project_cass-response.pdf
- <https://journals.sagepub.com/doi/epub/10.1177/0886260520915554>

Wikipedia page on Transgender rights in the UK is a very good summary of recent developments too!

